

# MedCAD Digital Library

## Platform Terms of Use & Access Agreement

*Governing access to and use of the MedCAD Digital Library Platform*

Document Reference: MedCAD-TOU-001 | Version: 1.0 | Classification: DRAFT

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| <b>Effective Date</b> | [To be inserted upon execution]                                                                                    |
| <b>Parties</b>        | MedCAD Platform Administrator and the Authorised User / Trust named below                                          |
| <b>Scope</b>          | Use of the MedCAD Digital Library platform, including all CAD datapacks, build files, and associated documentation |
| <b>Governing Law</b>  | Laws of England and Wales                                                                                          |

### 1. Definitions

For the purposes of this Agreement, the following terms shall have the meanings set out below:

- "Platform" means the MedCAD Digital Library, including its web interface, database, file repository, and associated tools.
- "Authorised User" means any individual or NHS Trust granted access to the Platform by the Platform Administrator.
- "CAD Datapack" means any design file, specification, process parameter set, or build instruction hosted on the Platform.
- "OEM" means the Original Equipment Manufacturer that has submitted and authorised the relevant CAD Datapack.
- "Regional AM Hub" means a certified additive manufacturing facility registered on the Platform to fabricate components.
- "Non-Patient-Contact Component" means a mechanical or structural part that does not directly contact a patient during clinical use.
- "QA Certificate" means the quality assurance documentation generated upon successful completion of fabrication checks.

### 2. Grant of Access

2.1 Subject to the terms of this Agreement, the Platform Administrator grants the Authorised User a non-exclusive, non-transferable, revocable licence to access and use the Platform solely for the purposes set out herein.

2.2 Access is limited to Non-Patient-Contact Components that have been approved and listed in the Platform catalogue.

2.3 The Authorised User shall not share login credentials, permit access by unauthorised individuals, or use the Platform for any purpose outside the scope of this Agreement.

### 3. Permitted Use

Authorised Users may use the Platform to:

- Browse and search the catalogue of OEM-approved Non-Patient-Contact Components.
- Submit a fabrication request to a registered Regional AM Hub.
- Download QA Certificates and audit trail documentation for completed fabrication events.
- Report quality issues or in-service anomalies through the Platform's reporting function.

## 4. Prohibited Use

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Authorised Users are expressly prohibited from:

- Downloading, copying, or distributing CAD Datapacks outside the Platform environment.
- Modifying, reverse-engineering, or adapting any CAD Datapack without express written authorisation from the relevant OEM.
- Using any fabricated component for patient-contact applications unless separately and explicitly approved.
- Using the Platform for commercial resale, sublicensing, or any purpose unrelated to NHS clinical equipment maintenance.
- Circumventing access controls, audit trail systems, or QA verification processes.

## 5. Intellectual Property

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5.1 All CAD Datapacks hosted on the Platform remain the intellectual property of the respective OEM or contributing organisation. No rights in such materials are transferred to the Authorised User by virtue of this Agreement.

5.2 The Platform infrastructure, interface, and associated software are the property of the MedCAD Platform Administrator.

5.3 The Authorised User shall promptly notify the Platform Administrator of any suspected unauthorised access to or misuse of any CAD Datapack.

## 6. Data and Audit

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6.1 All access events, download requests, and fabrication orders placed through the Platform are logged automatically and form part of the Platform audit trail.

6.2 The Authorised User consents to the collection and retention of such data for the purposes of quality management, traceability, and regulatory compliance.

6.3 Audit records shall be retained for a minimum of seven (7) years from the date of the relevant fabrication event.

## 7. Termination

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7.1 The Platform Administrator may suspend or terminate access immediately upon breach of any term of this Agreement, or where access poses a risk to patient safety or Platform integrity.

7.2 The Authorised User may terminate this Agreement by providing thirty (30) days' written notice to the Platform Administrator.

7.3 Obligations relating to intellectual property, data retention, and liability shall survive termination.

## 8. Limitation of Liability

8.1 The Platform Administrator shall not be liable for any loss, damage, or harm arising from the fabrication or use of any component produced through the Platform, except where such loss arises from the Platform Administrator's own negligence or wilful misconduct.

8.2 The Authorised User acknowledges that fabricated components are intended as temporary replacements only, pending receipt of permanent OEM-supplied parts.

## 9. Governing Law and Dispute Resolution

This Agreement shall be governed by and construed in accordance with the laws of England and Wales. Any dispute arising under this Agreement shall be referred to mediation in the first instance before legal proceedings are commenced.

## 10. Digital Acceptance & Record of Agreement

This Agreement is accepted digitally — no physical signature is required. Acceptance is recorded automatically by the MedCAD Platform at the point of first login, as described below. This constitutes a legally binding agreement under the Electronic Communications Act 2000 (UK).

10.1 Upon first accessing the Platform, the Authorised User is presented with a mandatory acknowledgement screen displaying a summary of these Terms of Use. Access to the Platform is not granted until the Authorised User checks the confirmation box and clicks 'I Agree'.

10.2 The Platform automatically generates and retains a timestamped digital acceptance record at the point of confirmation, including the details set out below.

### NHS Trust / Authorised User — Accepting Party

*How acceptance is recorded: Mandatory checkbox confirmation on first login screen, before platform access is granted.*

*Platform audit log captures: User account ID, full name, NHS Trust name, IP address, device identifier, date and time of acceptance, version of Terms accepted.*

This constitutes a legally valid record of acceptance under the Electronic Communications Act 2000 (UK).

### MedCAD Platform Administrator — Platform Operator

*How acceptance is recorded: Platform is configured and maintained in accordance with these Terms. Acceptance of operator obligations is recorded at platform deployment.*

*Platform audit log captures: Administrator account ID, platform version, deployment date, configuration audit log.*

This constitutes a legally valid record of acceptance under the Electronic Communications Act 2000 (UK).